



Document Title

**CONTRACTOR
ENVIRONMENTAL SAFETY
HEALTH RULES &
CONTRACT TERMS**

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Effective Date	21/11/2022
Page	1 of 13
Revision	03

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REVISION HISTORY				
P.GRAPH NO.	REV	DESCRIPTION	INITIAL	DATE
Document No.	03	Changed document number from RC-1791 to RC-G0077 to standardize document numbering system.	Faris	14/11/2022
Item 35		Amend Item 35 Environmental Management to include description of contractor responsibility towards Environmental management		
Item 38(8)		<u>SAFETY VIOLATION PENALTY PROCEDURE</u> Change "Inari Safety Passport" to "any safety training from training provider such as but not limited to NIOSH Safety Passport or CIDB Green Card"		
Item 38(9)		Change "Inari Safety Passport (ISP)" to "Inari Visitor Badge"		
Declaration		Remove "and also on the Inari Technology Sdn Bhd EHS hand out"		

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CONTRACTOR ENVIRONMENTAL SAFETY HEALTH RULES & CONTRACT TERMS

1. INTRODUCTION

Inari policy is committed to maintaining highest standard of health, safety and environmental management for its employees and contractors. Inari requires this standard to be maintained by all personnel working within its premises and sites. This contract has been drawn up to assist contractors comply with the requirements of Inari environmental, health, and safety standards, associated procedures and legislation. It should not be interpreted as a comprehensive document covering all legislation.

These rules are not intended to restrict contractors or to relieve them of any of their legal obligations to ensure safe working procedures or contractual obligations.

Where doubt arises on any point regarding the application of these rules then advice must be sought from Inari Technology management or the Safety & Health Officer.

2. DEFINITIONS

Client means a company or person that issues a contract to a contractor.

Contract(s) means an agreement between two parties by which both are bound in law and which can therefore be enforced in a court.

Contractor means a company or person who has entered into a contract for the purpose of carrying out any work or part of the work as stated in the contract or agreement.

Employer means the immediate employer or the principal employer or both, as per interpretation in osha1994.

Hazard means a source, situation, or act with potential for harm in terms of human injury or ill health and damage to property, or a combination of these.

Subcontractor(s) an individual or company performing some of the work within a contract, and under contract to either the original client or contractor.

The Manager means the appointed representative of Inari. To whom responsibility has been delegated.

3. ACCEPTANCE OF CONDITIONS

The contractor's acceptance of the Company's instructions to carry out the work includes acceptance of these rules for contractors. The attached declaration is required to be completed by the contractor as an acknowledgement of receipt and acceptance and a signed copy bearing the contractor's official stamp must be handed over to the Company prior to the commencement of any work.

4. INSURANCE & LIABILITY

4.1 LIABILITY FOR DAMAGE TO PROPERTY AND INJURY TO PERSONS

The contractor shall indemnify and keep indemnified the Company and its employees from all actions, claims and demands arising from breach or non-observance of Health and Safety legislation in the execution of the contract. The contractor shall keep indemnified the Company from and against all actions, claims, costs, charges, proceedings and demands that may be made or brought against the Company or which the Company may bring or sustain in respect of damage or injury to persons or property directly or indirectly due to, or arising from an act, neglect or default of the contractor, its agents, servants or workmen in consequence of, or in any way arising out of the execution of the contract. Prior to the Purchase Order being placed, the Company shall have the right to inspect the contractor's relevant insurance policies, which must be maintained by the contractor throughout the duration of the contract.

4.2 INSURANCE

The Supplier shall effect and throughout this Agreement keep in force a policy or policies of insurance including, without limitation, Workmen's Compensation, Employers Liability Insurance and Professional Negligence Certificate with a reputable insurance company incorporating the standard conditions and exemptions of such insurance company such policy or policies of insurance to cover all public liability claims arising from the exercise by the Supplier of the terms of this Agreement and make available to the Company or its agent on reasonable demand a copy of such policy or a summary of its terms and a copy of the current premium receipt.

5. COMPLIANCE WITH STATUTORY REGULATIONS

All contractors must comply with the Laws of the country regarding the employment of their workforce personnel. The objective is that all workers employed by the contractor must be permanent employees and not casual workers. The Company may demand that the contractor provides documentary proof that its employees are permanent staff.

All contractors shall carry out their work in accordance with the provisions of the Factories Act and all Codes of Regulations made there under.

Contractors must observe and comply with, at all times, legislation and rules affecting their safety, health and welfare.

The Company may exclude from site any contractor who breaches any of these rules.

6. COMMENCEMENT OF WORK

No contractor will be permitted to commence any work whatsoever on any of the Company's facilities without a valid official Purchase Order/ letter of intent or valid Contract first having being issued for the work to be carried out by the contractor.

7. SAFETY INDUCTION

Every contractor and employees shall receive safety induction before commencing work on any of the Company's facilities.

The minimum period for the induction is two (2) hours and will depend on the risks of the job and will be required to sign a commitment and submit one passport photo for the Inari Safety Passport as EHS safety requirement.

8. CONSULTATION

Before any work begins, the contractor must consult with the responsible Manager or his representative to discuss the safety aspects of the work to be done and to be advised of any local site rules. Should a problem arise during the course of the contract, which may have implications on the safe completion of the contract, the responsible Manager must be informed accordingly.

9. MANAGEMENT OF SAFETY AND GOOD WORKING PRACTICES

The contractor will provide the Company with a copy of its Health and Safety Policy and will also furnish evidence that adequate resources, in terms of time, funds, know-how and effort will be applied to ensure effective management of safety and good working practices throughout the work to be done.

The contractor will also ensure:

(a) Competence

That all its employees have sufficient knowledge and experience to carry out the work using good working practices and to account for the risks to themselves in order that the work can be carried out in a safe manner. Certification of competence will be required whenever possible. In particular, where a statutory requirement dictates a training record or certificate is required, these need to be shown to the responsible Manager prior to commencing work.

(b) Information, Instruction and Training

That all its employees are informed of any hazards which may exist at the place of work and that they receive such training as may be necessary to carry out the work safely and satisfactorily.

(c) Supervision

That all work undertaken by the contractor is at all times adequately supervised by the contractor's appointed supervisors or foremen.

10. SUB-CONTRACTING

The contractor must obtain approval from the Company or the Manager responsible for the contract and sign a commitment that he is responsible for the supervision of a subcontractor, prior to engaging a subcontractor and the contractor must impose upon the sub-contractor the Company's rules for contractors.

11. REPORTING OF ACCIDENTS

The contractor shall report accidents/incidents; near misses and dangerous occurrences to the responsible Manager immediately and work shall stop to protect the accident scene for investigation purpose. The manager shall help the contractor investigate the accident, review the risk assessment and share the learning with the team before the job commences. If the accident has caused permanent incapacitation the local relevant authority should be informed as per statutory requirement.

12. FIRST AID

Prior to the commencement of work the contractor must establish with the Company all details of the first aid equipment available together with the contact person's telephone and hospital with casualty facility. In the absence of any provision by the Company, the contractor will make suitable arrangements consistent with the risks from the work to be done.

13. SECURITY

Contractors shall notify their arrival and departure on Company facility according to the laid down Company procedures.

Entry onto the Company's facilities for contractors' personnel will only be allowed after issuing of Permit to Work and verification on Inari Safety Passport to each individual contractor's personnel in accordance with the rules of the Company's Safety and Security departments.

The Company reserves the right to search contractors' vehicles, personnel or property entering, leaving or present on the Company's facilities. **Any contractor found violating / breaching the Company's safety standards, rules and regulations is liable to sign the sanction policy statement.**

14. EMERGENCY MANAGEMENT

The contractor will ensure that any uncontrolled event that has the potential to adversely affect people or the environment shall be acted upon and reported in accordance with site rules immediately e.g. fire, explosion, physical injury, chemical spillage. The Company has provided local emergency response management plan details. The contractor will ensure that all his staff and sub-contractors are made aware of local emergency procedures and drill requirements. The Contractor or Sub-contractor must present an H&S plan before commencement of work and all contractors and sub-Contractor must be trained on the H&S Plan.

15. PERMIT-TO-WORK & LOTOTO

Where permit-to-work and LOTOTO procedure apply, no contractor shall begin work without applying permit-to-work and LOTOTO procedure. The contractor must consult with Inari EHS department to get proper authorization to apply permit-to-work and LOTOTO procedure.

16. PROTECTIVE EQUIPMENT AND STANDARDS

It is mandatory for all personnel working in Inari sites to wear protective safety footwear and safety helmet. Other PPE'S are mandatory depending on the job. Contractors **must** provide their employees with suitable safety footwear, and other personal protective equipment and the employer shall train the employees on use of the safety gears and ensure correct use.

17. WORKING TOOLS AND EQUIPMENT

Contractors must ensure that all working tools and equipment are of sound construction and maintained in a safe condition. In the event that any tool or equipment becomes unsafe or defective it shall be removed from service immediately. The Company reserves the right to remove any contractor's working tools or equipment that it deems is unsafe for use.

All portable electrical power tools must only be capable of operating at a power supply voltage of 240 volts AC, single phase. The only exceptions are portable welding machines, which are permitted for operation at a power supply voltage of 415 volts AC, three-phase.

Maintenance and storage of contractors' equipment and materials shall be the sole responsibility of the contractors. The Company will accept no responsibility for the theft or loss of contractors' equipment or materials from the Company's site.

18. HANDRAILS, GUARDS AND FENCING

The removal of handrails, guards, fencing and other protection devices from the Company's equipment or machinery is both highly dangerous and illegal; it is therefore **strictly** prohibited.

Guards, protection devices and other safety systems will only be removed from a machine with the agreement and consent of the Company and only after the machine has been switched off, isolated and locked out in accordance with the Company's rules. Prior to any machine being re-commissioned, all guards, devices or systems will be replaced and secured in position.

19. CRANES, HOISTS AND LIFTING GEAR

Contractors will normally be expected to provide all the necessary lifting equipment required to complete the work for the Company. Contractors who bring their own cranes, hoists and lifting gear to the Company's sites will be required to comply with the statutory requirements relating to periodic testing and examination of such equipment and will provide copies of the appropriate documentation for checking by the Company.

20. ACCESS EQUIPMENT

The contractor must ensure that any form of access equipment e.g. ladders, step ladders, scaffolds, access platforms used or intended for use is of sound construction, fit for the purpose and properly maintained in a safe condition. Access equipment must only be used in accordance with recognized practices and procedures. Such equipment should be regularly inspected in compliance with statutory requirements.

21. WORKING AT HEIGHTS

Where it is necessary to work at heights of more than 2 meters as per EHS requirement, precautions must be taken to prevent persons falling, i.e. safe hand and foot holds, safety harnesses, etc. Wherever working platforms are provided, handrails and toe boards must be fitted. No person is permitted to go onto any Company roof, ceiling or roof void without formal work at height permit from the Company.

Where scaffolding is required, it must be erected by a competent scaffolder according to the statutory standards. After erection, scaffolding will not be used until inspected by the Company's safety representative and a written approval issued for its use is displayed on the scaffolding. It is mandatory to use a safety harness when working on scaffolding.

All safety harnesses to be used by contractors' employees must be provided by their employer and the harness must be of an approved type with twin tail lanyard with two hocks.

22. MANUAL HANDLING OPERATIONS

Where there is a need for contractor's staff to lift or move loads manually, the contractor will ensure that adequate consideration is given to the key elements of task, load, individual capability and the working environment to ensure that personnel are not put at risk by such operations.

23. WORK IN CONFINED SPACES

The term „confined space" has a wide definition and includes the following:

- Any closed tank, silo or vessel
- Large ducts
- Enclosed drains or sewers
- Kilns, mills, cyclones, separators and furnaces.
- Equipment housing
- Closed and unventilated rooms

The main risks to be considered with these are toxic, flammable or explosive gases, dust, fumes and vapors or an atmosphere deficient in oxygen. The possibility of engulfment should also be considered, together with any need for secure isolation of any feed mechanisms or pipe work servicing such confined spaces. This objective will be achieved by personnel **not** entering any confined space until a Permit to Work has been prepared and the necessary safe working procedure established with the Company well in advance of the work, which specifies the precautions, controls and relevant personal protective equipment. The agreed controls **must** be fully implemented.

24. ASBESTOS

Work with asbestos will **not** be permitted on any Company site under any circumstances. Should asbestos material be unexpectedly encountered, then work must CEASE immediately and the Company must be informed.

All asbestos waste / debris where encountered, must be handled and disposed of in the recommended manner.

25. BUILDING AND CONSTRUCTION WORK (INCLUDING DISMANTLING AND DEMOLITION)

All building and construction work must fully comply with the statutory standards which have been laid down for such work to be carried out. Particularly contractors are required to provide any relevant information for the safety file related to the work they are involved with and to discuss with the Company's representative on a regular basis during the course of such work.

26. EXCAVATIONS AND UNDERGROUND SERVICES

Prior to any excavation work on any Company site, the contractor must ensure that a written Permit To Work is prepared in consultation with the Company, indicating the location of any underground services such as electric cables, oil pipes, water pipes, gas mains, telecommunications networks, drains, sewers, etc. If the Company is not able to provide this information then the contractor must not proceed until he can demonstrate to the Company that such services are satisfactorily located and identified. Appropriate excavation precautions must then be taken throughout the work.

27. FIRE PRECAUTIONS

All contractors shall familiarize themselves and their employees with the Company's firefighting equipment and precautions as well as emergency procedures.

Before leaving the Company's premises and sites, contractors must ensure that all naked lights and other ignition sources have been extinguished and electrical apparatus switched off.

The contractor and all its employees should be familiar and trained on the Lafarge site emergency response plan.

28. WELDING AND FLAME/ARC CUTTING OPERATIONS

Prior to any welding or flame/arc cutting operation taking place, the contractor must demonstrate that risk assessment for flammable hidden hazards has been carried out and the precautions to be taken to prevent exposure to the hazards have been identified. Therefore, contractors are required to ensure that their employees are provided with personal protection and where necessary protective screens are erected.

In all instances where welding or similar work is taking place, the necessary Permit to Work and Daily Hot Work Permit conditions will be agreed with the responsible Manager beforehand.

There will be readily available adequate means to fight a fire. Sufficient provision will be made for "end of work" checks for fire potential.

29. ELECTRICAL WORK

All work on electrical systems or equipment will be carried out "dead", securely isolating the conductors to be worked on. **"Live working" will not be permitted under any circumstances whatsoever.**

If an electrical contractor is faced with exceptional circumstances outside the above criteria, which in his opinion requires work to be carried out "live", he must consult with the responsible Manager who will make arrangements with the Company's Facility department for the appropriate action to be taken.

30. SUBSTANCES HAZARDOUS TO HEALTH

No contractor will be permitted to carry out any activity whatsoever which might use or create substances that may be classified as hazardous to health.

31. NOISE

Contractors who bring their own plant and machinery onto any site must be able to provide information on noise levels emitted by their machines. Noise levels from contractor "s activities must be fully considered in terms of their impact on contractor "s personnel, the Company's staff and the neighborhood. If there is any doubt about the potential effects or the methods of control, the issues should be fully discussed with the Company.

The preferred method of control is by engineering means and contractors must ensure that this option is considered first. If this is not possible, then it may be possible to control exposure to noise by shielding or minimizing the exposure time. The use of hearing protection must be seen as an absolute last resort.

Information on noise levels will be provided by the Company. Where signs are located indicating "Ear Protection Zones", then this means that noise levels exceed 85 dB (A) and suitable ear protection must be worn at all times when in those areas.

32. RADIATION

No radioactive substance may be brought onto any Company site or used by contractors in any process for conducting any tests unless notice of such intention is given in writing to the Company.

33. SITE VEHICLES

All site vehicles used on Company premises must be maintained in accordance with manufacturer's instructions and must comply with company standards. The Company reserves the right to ask for details of the last maintenance record of the vehicle. Vehicles used on site and their method of use must conform to local site rules.

Contractors' employees who drive on the Company's site must strictly adhere to the statutory requirements, rules and traffic signs existing on site and be fully aware of any transport routes which may apply, (e.g. One Way Road systems) and of any other Site Rules to which they must conform.

Contractors and their employees, whether as drivers or pedestrians, must observe local site rules and should always observe caution when in the vicinity of site vehicles. Pedestrian access routes provided must be used whenever possible.

34. HOUSEKEEPING

Waste and other debris from the contractor "s working site must be prevented from accumulating and waste materials must be removed daily. All floors, steps, stairs,

passageways, gangways and fire exits shall be kept free from any obstruction. Spillage must be promptly and adequately cleaned up, and constant attention maintained to prevent persons slipping, stumbling or falling.

35. ENVIRONMENTAL MANAGEMENT

Inari has a responsible approach to the environment and operates to clearly define environmental policies at where Inari develop, implement, and maintain environmentally responsible business practices. When operating on any Company site, contractors must be similarly responsible by providing evidence of effective environmental management.

- a) Contractors must be up-to -date and comply with all environmental permits and regulations with record if applicable.
- b) Contractors must comply with Inari requirements for all goods it manufactures for or provides to Inari.
- c) Contractors must implement a systematic approach to identify, manage, reduce, and responsibly dispose of or recycle Hazardous Waste and non-Hazardous waste.
- d) Contractors must implement a systematic approach to identify, control, and reduce wastewater produced by its operations. This could be done by conducting routine monitoring of the performance of its wastewater treatment systems.
- e) Contractors must implement a systematic approach to prevent stormwater runoff contamination that includes prevent illegal discharges and spills from entering storm drains, the public water supply, or public bodies of water.
- f) Contractors must identify, manage, reduce, and responsibly control Air Emissions produced from its operations that pose a hazard to the environment. This could be done by conducting routine monitoring of the performance of its Air Emission control systems.
- g) Contractors must identify, manage, reduce, and responsibly control Greenhouse Gas (GHG) emissions from its operations.

36. WELFARE

Where the Company's facilities are not available, the contractor needs to make adequate welfare provisions for its employees.

37. ALCOHOL AND DRUGS

All personnel working on the company premises are expected to be alcohol and drug free. All personnel shall be subjected to alcohol tests.

38. SAFETY VIOLATION PENALTY PROCEDURE

1. EHS personnel will carry out periodic inspection or spot audit at work site.
2. Violation will be captured through witness or by camera as evidence.
3. EHS audit will be carried out from time to time to ensure compliance.
4. EHS violation will be recorded in summon form and acknowledged by related company In charge personal.
5. Summon will be issued in 3 copies; 1 to contractor, 1 to project leader, 1 to EHS for file.
6. One copy will be given on the spot to the related personal upon acknowledgement.
7. Any unsafe act will be recorded down together with contractor batch Number / Name.
8. Contractor workers entering Inari premises to work must have **any safety training from training provider such as but not limited to NIOSH Safety Passport or CIDB Green Card** (applicable to local and foreign national).
9. All contractor workers must wear **Inari Visitor Badge** at all the time inside the premises. Without ISP, contractors are not allowed to perform work in Inari premises.
10. 1st Minor safety violation will be summoned RM100/finding. 2nd RM 200/finding. 3rd violation onwards RM 500/finding and banned the worker for period of 1 year. (Repeated cases are based on previous violation record disregarding of different violator).
11. Smoking are prohibited except at designated 'Smoking Corner' only. **Fine RM 500** will be imposed to the violator company and banned entry for period of 1 year to the violator.
12. Any major violation which caused property damage through negligence, error or Accidental, the repair cost will be borne by contractor and will be given 1st warning letter with RM 1,000 fine. Further Infringements shall result in 2nd warning letter with RM 3,000 fine and final 3rd warning letter with RM 5,000 fine and will be banned from bidding for further project in Inari Technology Sdn Bhd, upon Inari's management discretion.
13. All contractors must adhere to Inari's EHS and ISO14001 requirements and ensure their work area is tidy, well-kept and clean. Any area finding with growth of mosquito lava's will be subject to summon RM 500 /case. Any summon from health ministry will be revert to the related contractor company (violator).
14. Any environmental violation under the legal requirement, the penalty by relevant Government department will be borne by contractor and will be given 1st warning letter with RM 5,000/finding. Further infringements shall result with 2nd warning letter with RM 10,000/finding and will be banned from bidding for further project in Inari Technology.
15. All the contractor required to pay their compound to Inari finance department by **Cash** or **Cheque** within 1 month time from the date of the summon issued.
16. All cheque payment (Made to) : **INARI TECHNOLOGY SDN BHD**

Date: _____

DECLARATION

CONTRACTOR SAFETY RULES & CONTRACT TERMS

I the undersigned, hereby declare that I am conversant with the legal requirements of the factories Act and related legislation, which places legal responsibilities upon my working activities.

I further declare that I shall conduct my working activities in accordance with those requirements and the matters set out in these terms shall form an integral part of any contract with the Company and that failure to comply with such matters shall be construed as a breach of such contract.

I have received a copy of the Contractors Safety Rules and declare that the contents have been made known to my employees and sub-contractors.

I understand that Inari Technology Sdn Bhd EHS requirements and will strictly adhered the stipulated requirements mentioned above.

Contractor Name	IC / Number	Company Name	Signature & Chop
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